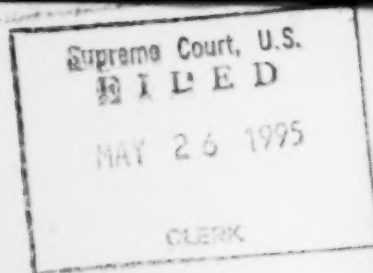


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No. 94-1705



IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

ASTON A. BEADLE,

Petitioner,

v.

CITY OF TAMPA, FLORIDA, a Florida municipal corporation,
and THE CITY OF TAMPA, FLORIDA, POLICE DEPARTMENT,

Respondents.

On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Eleventh Circuit

REPLY BRIEF OF PETITIONER

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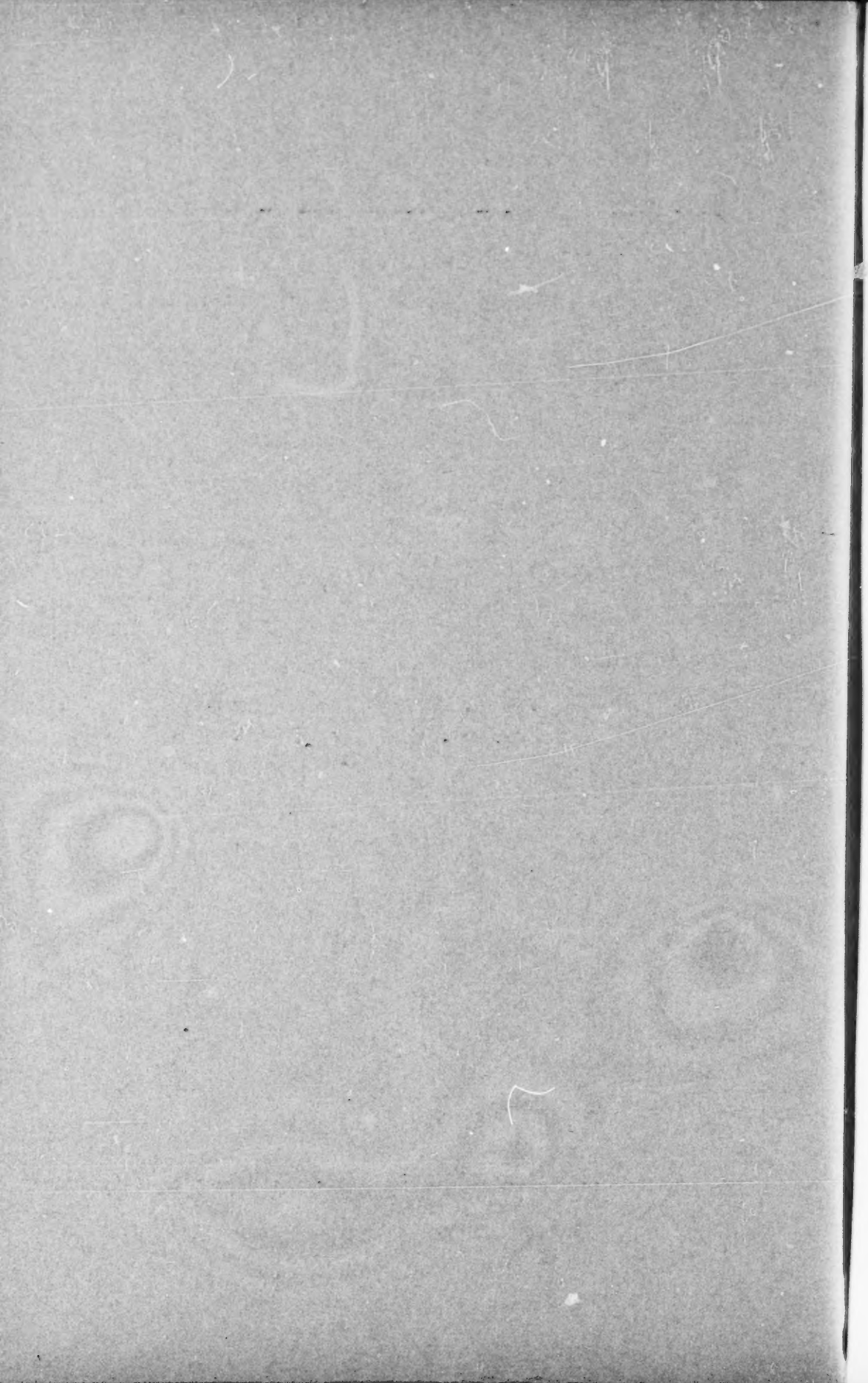


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The City's Opposition buttresses Beadle's position that the court of appeals applied the wrong legal standard — one which is at odds with the declared will of Congress.

1. The City doesn't refute that the Eleventh Circuit's decision conflicts with the undue hardship analysis of *Brown v. General Motors Corp.*, 601 F.2d 956, 960 (8th Cir. 1979) (see Petition at 11, 14, 17), as well as with decisions of the Third, Sixth, and Seventh Circuits in *Protos v. Volkswagen of America, Inc.*, 797 F.2d 129, 133 (3d Cir. 1986); *McDaniel v. Essex Int'l*, 696 F.2d 34, 37, 38 (6th Cir. 1982); and *Redmond v. GAF Corp.*, 574 F.2d 897, 903-04 (7th Cir. 1978) (see Petition at 14-15, 17-18). The City chooses to ignore these cases.

Instead, the City rejects the theme of *Brown*, *Protos*, and *Redmond* that an employer must either reasonably accommodate an employee's religious needs (42 U.S.C. § 2000e(j)) or demonstrate an "undue hardship." The City would replace this statutory requirement with a "more than *de minimis* burden" benchmark. It erroneously rejects Beadle's argument that burden is not the same as costs, Opp. at 18, claiming "*Hardison* and its progeny have held that undue hardship can be defined in terms of both economic costs to the employer and the burden on the employer such as loss of efficiency,¹ increased risk, decreased employee morale." Opp. at 20.

2. The City states "To suggest as Plaintiff Beadle has that the City would incur undue hardship *only if* it had to pay

¹Beadle understands that economic costs include lost work place efficiency, as well as higher wages. See *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 84 (1977).

overtime, but not if the City has one less patrol officer on the street . . . makes no logical sense and has no legal support." Opp. at 20. This completely misconstrues Beadle's position and bears no resemblance to Beadle's argument.²

The statutory standard remains "undue hardship," not "more than *de minimis* burden." Under *Hardison*, an accommodation which results in more than *de minimis* economic cost "either in the form of lost efficiency in other jobs or higher wages" is deemed to be an undue hardship, 432 U.S. at 84.³ Contrary

²Colonel Fox admitted that during field training when a trainee had to be off, the Department's efficiency was unaltered due to the continued presence of regular officers on the squad. R2-67-194:6-195:24. He testified that even when a regular officer was not available there were sufficient street officers to cover an absence. R2-67-186:1-12. The City's expert even testified it was much easier for law enforcement officers to be off than those in jail detention positions. R3-70-24:2-25:8.

³*Hardison* explained why more than *de minimis* economic cost would constitute an undue hardship: "By suggesting that TWA should incur certain costs in order to give *Hardison* Saturdays off the Court of Appeals would in effect require TWA to *finance* an additional Saturday off and then to choose the employee who will enjoy it on the basis of his religious beliefs." 432 U.S. at 84 (emphasis supplied). But here the City was not faced with financing an additional Saturday off. Rather, accommodation alternatives required only Beadle's non-random placement on a training squad with Saturdays as the scheduled day off and, at best, a further minimal deviation from departmental practice, involving no economic cost to the City. The court was "unable to conclude that the accommodation of a transfer of Beadle to another training shift

to the City's claim, *Hardison* did not include other non-economic burdens on an employer within the "undue hardship" criterion. Ironically an accommodation existed which would have allowed Beadle to complete his 16 weeks of field training with never "one less patrol officer on the street." Opp. at 20.

The City, like the Eleventh Circuit, extends the "more than *de minimis* cost" analysis beyond economic costs to include all factors that might burden an employer. In so doing, they ignore congressional intent and rewrite the religious accommodation provisions of Title VII.

In support of this mistaken view, the City argues that to have a higher threshold for undue hardship than "*de minimis*" would infringe on the Establishment Clause. Opp. at 26.⁴ This argument, while unique, is clearly wrong. The City looks to Justice O'Connor's concurring opinion in *Estate of Thornton v. Caldor, Inc.*, 472 U.S. 703 (1985), in which she concluded the majority's holding in *Caldor* should not be read to invalidate Title VII's religious accommodation provisions.

would have deprived another police trainee of the benefits of the neutral scheduling system." App. at 27a.

⁴The City questions the constitutionality of section 701(j) of Title VII, 42 U.S.C. § 2000e(j), contending that a literal application of the "undue hardship" proviso would violate the Establishment Clause. Consequently, Rule 29.4(b) requires the Solicitor General be promptly informed. National Jewish Commission on Law and Public Affairs at page 7 of its *amicus curiae* brief suggests that because of EEOC's *amicus* support of petitioner in the Eleventh Circuit, this Court should request the Solicitor General state the views of the United States. Beadle agrees.

Specifically, it fixes upon that portion of the opinion which noted: "Like the Connecticut Sabbath law, Title VII attempts to lift a burden on religious practice that is imposed by *private* employers, and hence it is not the sort of accommodation statute specifically contemplated by the Free Exercise Clause." *Id.* at 712 (O'Connor, J., concurring) (emphasis in original).

The argument contends Justice O'Connor's reference to "private" employers "calls into question whether Title VII's religious accommodation requirements entirely reach public employment." *Opp.* at 28. The City proposes "it is one thing for a private employer to be required to give an accommodation to its employees, but it is entirely another matter for a public employer to grant a public employee a permanent religious holiday *vis-a-vis* his fellow employees." *Id.* Relying upon *Miller v. Drennon*, 56 Fair. Empl. Prac. Cas. (BNA) 274 (D. S.C. 1991), *aff'd*, 966 F.2d 1443 (4th Cir. 1992), for the proposition that "giving a public employee plaintiff the accommodation he requested constitutes a violation of the Establishment Clause," the City declares it is not required to accommodate Beadle, and to do so would violate the Constitution. *Opp.* at 30.

The City misconstrues Justice O'Connor's reference to private employers in *Caldor*. Of course, Justice O'Connor was not suggesting existence of a greater Establishment Clause concern with public employers. Quite the reverse. As Justice O'Connor noted in *Wallace v. Jaffree*, 472 U.S. 38, 83 (1985):

The text of the Free Exercise Clause speaks of laws that prohibit the free exercise of religion. On its face, the Clause is directed at government interference with free exercise. Given that concern, one can plausibly assert that government pursues

Free Exercise Clause values when it lifts a government-imposed burden on the free exercise of religion. If a statute falls within this category, then the standard Establishment Clause test should be modified accordingly. It is disingenuous to look for a purely secular purpose when the manifest objective of a statute is to facilitate the free exercise of religion by lifting a government-imposed burden.

Contrary to the City's contention, a government employer has a greater accommodation burden because of the free exercise implications.⁵

3. Contrary to the City's assertion, Beadle does not claim "unless the employer suffers 'costs' in terms of monetary costs, then no matter what other economic burden the employer may suffer in accommodating the employee," there is no undue hardship. Opp. at 11. Rather, Beadle relies upon the Third, Sixth, Seventh, and Eighth Circuits' interpretation that *Hardison's* "more than *de minimis* cost" language relates only to tangible economic costs suffered by the employer, such as payment of premium wages or a demonstrable loss of efficiency. The legal standard remains "undue hardship."

The City extends the "more than *de minimis* cost" analysis to such nebulous factors as "decrease in employee morale" (Opp. at 18), citing *EEOC v. Heil-Quaker Corp.*, 55 Fair. Empl. Prac. Cas. (BNA) 1895 (M.D. Tenn. 1990), and *Cook*

⁵As National Jewish Commission on Law and Public Affairs observes in its *amicus* brief, at 6, but for *Employment Div., Dep't of Human Resources v. Smith*, 494 U.S. 872 (1990), Beadle could have brought a constitutional claim against the City of Tampa under the First and Fourteenth Amendments.

v. Chrysler Corp., 779 F. Supp. 1016 (E.D. Mo. 1991), *aff'd*, 981 F.2d 336 (8th Cir. 1992), *cert. denied*, 113 S. Ct. 2953 (1993), to support its decreased morale contention. Yet other courts have rejected like arguments. *Burns v. Southern Pac. Transp. Co.*, 589 F.2d 403, 406 (9th Cir. 1978), refused application of a "more than *de minimis*" standard for decreased morale claims. *Burns* involved accommodation of an individual holding religious beliefs against union membership. Although the court acknowledged "free rider" problems could cause serious dissention among employees, it concluded:

[U]ndue hardship requires more than proof of some fellow-worker's grumbling or unhappiness with a particular accommodation to a religious belief. (589 F.2d at 402.) An employer or union would have to show, as in *Hardison*, actual imposition on co-workers or disruption of the work routine.

Id. at 407. These arguably conflicting cases underscore the confusion arising from *Hardison*.

4. The City argues "unless Beadle completed the field training program as it existed at the time, he would not enjoy the full benefits of the program by having the opportunity of working with different field training officers, on different shifts, and in different locations of the City." Opp. at 11. It is true that had Beadle been transferred to Sergeant Dawson's squad and left with one training officer for the full training period, he would miss the benefit of working with other training officers. But the three alternative accommodations suggested by Beadle, App. 25a-26a, would have provided for

training by a variety of training officers.⁶

Beadle's supervisor, Sergeant Cook, admitted Beadle's training would not have been compromised, nor would the training program have been adversely affected, for Beadle to remain the full 16 week period on Sergeant Dawson's squad, being transferred between two separate training officers. That is precisely how training was done when Cook's deposition was taken. Cook Dep. R2-66-43:22-44:10; 126:18-129:20.⁷

If there were proof — which there is not — that all available accommodations would have left Beadle inadequately trained

⁶Only by leaving Beadle with a single training officer during the 16 week field training would there have been a diminution of educational experience. But both of Beadle's Eleventh Circuit briefs (opening brief at pages 28 and 30 and reply brief at pages 39-40) explained how a transfer between two separate training officers within Sergeant Dawson's squad would provide the same continuity and consistency as is currently experienced in the Department's training program.

⁷As American Jewish Congress observed in its *amicus* brief at page 6, it is untenable to claim that Beadle could not function effectively as a police officer without undeviated subservience to a training program subsequently discarded. As the court stated in *Robinson v. Lorillard Corp.*, 444 F.2d 791, 798 (4th Cir. 1971), "there must be available no acceptable alternative policies or practices which would better accomplish the business purpose advanced, or accomplish it equally well with a lesser differential . . . impact." The fact the Department subsequently adopted a training program essentially the same as proposed by Beadle significantly undercuts its undue hardship defense. But the Eleventh Circuit found the point irrelevant.

as a police officer, then the statutory "undue hardship" may well have been met by the City. But it made no such showing, and the lower courts made no such finding.

The trial court stated "[a]t the trial, City command officers testified that assignments to a particular training squad *without rotation* is detrimental to the consistency of the training and results in lack of proper training. According to the City, it is extremely important to the continuity of the training that the police officers *be trained under different field training officers*." App. at 18a-19a. Yet available accommodations would have allowed for such training. See Pet. at 25-26.

As EEOC argued in its *amicus* brief before the Eleventh Circuit, at page 23, quoting *Benton v. Carded Graphics, Inc.*, No. 931679, slip op. 1994 W.L. 249221 (4th Cir. June 9, 1994) (unpublished):

It was not enough to find that granting "shift exceptions" would result in some sort of generalized "cost" to the public health, safety and welfare. Rather, at a minimum, the magistrate should have considered the City's evidence of hardship, including the particular requirements of the job in question and the impact on the law enforcement agency, and made findings crediting or rejecting that evidence, as it related to the specific accommodations Beadle proposed. "What the law . . . require[s] is a thorough exploration of all the alternatives that would meet the employee's religious needs, and the fact-based determination of whether any of those programs could be implemented without a predictably certain undue hardship."

The evidence proves that placing Beadle on Sergeant

Dawson's squad, rather than assigning him to Sergeant Cook, would not have been detrimental to the continuity and consistency of the training program. The fatal flaw in the court's factual analysis was weighing the facts as to the claimed burden on the Department under a more than *de minimis* rather than an undue hardship standard.

5. The City argues that resolution of the field training would not have solved the accommodation problem because it would continue after training. But the trial court found no accommodation problem after the training period, saying: "It was also established at the trial that a possible permanent accommodation would have been to permit Beadle to work at what was known as the 'downtown squad.' Officers assigned to this squad worked five days a week during the weekdays and the City's commanders had the prerogative of making assignments to this squad." App. 18a. Contrary to the City's statement that this was "one of the more favorable assignments," Opp. at 24, the trial court made no such finding, rather concluding the position had advantages and disadvantages. App. 18a.⁸

6. Finally, the City argues the trial court did not hold law enforcement agencies, as a matter of law, are exempt from Title VII. Opp. at 24. But that is precisely what the court said: "The Court interprets *Trans World Airlines, Inc. v. Hardison* to provide that Title VII does not require a law enforcement agency of the nature of the City of Tampa Police Department to grant its law enforcement officer a permanent weekly religious accommodation to the exclusion of his or her

⁸The record shows that whether the downtown squad was favored or disfavored varied from officer to officer. Pegram Dep. R2-62-26:8-27:15.

fellow officers." App. 27a.⁹

The EEOC addressed this mistaken conclusion in its Eleventh Circuit brief, at 10:

While the nature of law enforcement duties is a factor in determining whether accommodation is possible, the City is bound by the same duty to make reasonable accommodation as any other employer and may avoid liability under Title VII for failing to accommodate only by proving, as a matter of fact, that no accommodation could be made without undue hardship.

CONCLUSION

For the foregoing reasons and those stated in the Petition for Writ of Certiorari, this Court should grant the Petition.

Dated: May 26, 1995

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⁹Contrary to the City's assertion, the trial court failed to cite record evidence to support its holding, only stating that "the Court concludes that requiring the Department to grant shift exceptions to Beadle would be to incur a greater than **de minimis** cost because of the public health, safety and welfare considerations associated with police work." App. 27a-28a.

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